HOUSTON COMMUNITY COLLEGE

Procurement Operations Department
3100 Main Street
Houston, Texas 77002

INVITATION FOR BID

HVAC ROOF TOP UNIT (RTU) REPLACEMENT PROJECT, SPRING BRANCH CAMPUS

IFB NO.: 25-35

ISSUED BY:
Procurement Operations Department

FOR:
Facilities Department

PROCUREMENT OFFICER:
Art Lopez, Sr. Buyer
Telephone: (713) 718 - 7463
email: arturo.lopez@hccs.edu

BIDS ARE TO BE SUBMITTED ON BONFIRE NO LATER THAN:
May 14, 2025, by 2:00 p.m. (central time)

IFB No. 25-35: HVAC Roof Top Unit (RTU) Replacement Project, Spring Branch Campus

HCC BID Portal:	**Houston Community College (bonfirehub.com)**

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Exhibit Number	Exhibit Title
Exhibit No. 1	Sample AIA (A101) Lump Sum Construction Contract (attached)
Exhibit No. 2	Sample AIA (A201) Uniform General Conditions Construction Contract (attached)
Exhibit No. 3	Sample Construction Payment & Performance Bonds (Attached)

SOLICITATION SCHEDULE

The following is the anticipated solicitation schedule including a brief description for milestone dates:

Solicitation Milestone	Date & Time
Invitation for Bid released and posted to HCC's & ESBD's websites	April 10, 2025
A non-mandatory in person face-to-face Pre-Bid Meeting will be held at HCC's Spring Branch Campus, Science Hall, "Front Lobby Area", 1050 West Sam Houston Parkway, Houston, TX 77043	April 24, 2025, at 10:00 a.m. (local time)
Deadline to receive written question/inquiries	April 30, 2025, by 5:00 p.m.
Responses to written questions/inquiries (estimated)	May 7, 2025 by 5:00 p.m.
Bid Submittal Due Date and Time	May 14, 2025, by 2:00 p.m. local time
SBE Sub-Contracting Documentation (via e-mail)	May 15, 2025, by 2:00 p.m. local time
Anticipated Board Recommendation and Approval	June, 2025

NOTE: Houston Community College reserves the right to revise this schedule. Any such revision will be formalized by the issuance of an addendum to the IFB and posted on HCC Procurement Portal for your convenience.

Section 1 – Bid Overview & Scope of Work

1. Bid Overview

The Houston Community College, ("HCC" and/or the "College") is seeking competitive sealed bids from qualified contractors for HVAC RTU Replacement Project, Spring Branch Campus, in accordance with the plans and specifications referenced herein. Qualified firms are invited to submit a written response outlining their bid to provide goods, equipment, and services as described in the Scope of Work, and in accordance with the terms, conditions and requirements set forth in the Invitation for Bid (IFB). The successful bidder will provide the scope of work in accordance with all applicable laws, regulations, and professional standards.

1.1 Background Information

Houston Community College's service area includes Houston, Katy, Spring Branch, and Alief Independent School Districts, as well as Stafford Municipal District, and the Fort Bend portion of Missouri City. The System is accredited by the Commission on Colleges of the Southern Association of Colleges and Schools to award associate and baccalaureate degrees.

HCC serves its students and the region by offering associate and bachelor's degrees, certificates, academic preparation, economical education options, vocational trainings, flexible class schedules, and lifelong learning opportunities that prepare students in our diverse community to compete in an increasingly technological and international society. Houston Community College increases the economic outcome of its students and communities, playing an integral role in transforming and improving lives.

As of the year 2024 HCC has nineteen (19) campuses, spanning 6,517,666 square feet, serving 85,858 students.

More information regarding HCC is found in the annual HCC Fact Book. The Fact Book can be found at HCC Fact book.

1.2 Term of Agreement

The award resulting from this solicitation, if any, will be a one (1) time purchase as required for the term of the project in accordance with the project schedule and through the successful completion of the project.

1.3 Approval by the Board of Trustees

Any Agreement resulting from this procurement solicitation for amounts exceeding one hundred thousand dollars ($100,000) may need the approval from the Houston Community College Board of Trustees before becoming effective.

1.4 Pre-Bid Conference and Project Site-Visit

Attendance at this conference is not required but is encouraged. Any questions in connection with this IFB will need to be submitted in writing via the Bonfire portal. The College intends to present general information, which may be helpful in the preparation of bids.

Although we understand that the pre-bid meeting and site visits may provide some vital information about a project, we encourage Bidders to rely on the complete plans, specifications, and drawings, included in the solicitation in order to Bid.

The Procurement Officer responsible for managing this solicitation is Art Lopez, in coordination with the Project Manager, Mr. Juan Pericchi, who will manage this project once awarded.

Scheduled Site Visit
Immediately following the pre-bid conference, a site visit of HCC's Spring Branch Campus, Science Hall, 1050 West Sam Houston Parkway, Houston, TX 77043, will take place.

Contractor Must Make Thorough Study and Investigation
The Contractor must familiarize himself/herself with the project by thorough personal examination of the proposed work site(s), by due consideration of the specifications if applicable, and by use of any other means that may be necessary to determine the following:

a. The actual conditions and requirements of the work;
b. Any unusual difficulties that may be encountered in the prosecution of the work;
c. The character and respective amounts of all classes of labor and material which the contractor may be required to furnish in order to complete all or any part of the work; and
d. All circumstances and conditions affecting the work or its cost.

The Contractor's proposal must include any and all expenses he or she may incur in order to complete the work stipulated under the proposed contract. Any failure of the Contractor to acquaint himself or herself with all the available information concerning the above shall not relieve him or her of responsibility for estimating properly the difficulties or cost to successfully perform the work.

1.5 Performance and Payment Bonds
The successful Contractor(s) shall be required to provide a Performance and Payment Bond in the total amount (100%) of the Contract. If the award is in excess of $25,000.00, only the Payment Bond will be required. If the award is in excess of $100,000.00, both Performance and Payment Bonds are required.

The Performance and Payment Bonds form shall be as that distributed by HCC, and attached hereto, all duly executed by bidder (as "Principal") and by an incorporated surety company licensed to do business in the State of Texas. If the amount of the bond is greater than $100,000.00 the surety must hold a certificate of authority from the United States Secretary of the Treasury.

1.6 Disposal of Existing HVAC Equipment and Associated Metals
The Contractor shall be required to remove and properly dispose of the existing HVAC Equipment and any related recyclable metals in accordance with all federal, state and local laws and regulations. The Contractor is responsible for disposing of any materials in coordination with HCC's designated recycle Contractor which is South Post Oak Recycling Center. The recycling facility contact person is, **Ms. Brandi Harleaux via email at brandi@southpostoakrecycling.com, or by phone at 713.433.9944.**

HCC intends to sell any recyclable materials or scrap HVAC Equipment and related recyclable metals in addition to any copper, steel, stainless steel, both ferrous and nonferrous scrap to South Post Oak Recycling Center (SPORC). Materials will be either delivered to SPORC by the contractor or placed in a roll off container provided and hauled by SPORC.

SPORC shall be responsible for providing the College with a full report on the amount of materials recycled as well as the Contractor's responsiveness and willingness to comply with this recycling effort.

SPORC shall also furnish scale receipts (proof of delivery) to the truck driver delivering scrap metal which states the quantity in pounds and include each applicable category of material.

Copies of scale receipts, invoice receipts and the full amount due to HCC shall be furnished to the HCC's Procurement Officer identified herein.
Prices of material will be based on the American Metal Market rates negotiated in the agreement with SPORC.

1.7 Bid Submission Instructions

HCC utilizes Bonfire as its electronic solicitation platform. All submissions must be submitted electronically via the Procurement Portal HCC Procurement Portal under the respective Project.

Your submission must be uploaded, submitted, and finalized prior to the Project's posted due date. The College strongly recommends allowing sufficient time to complete this process (ideally a week prior to the deadline) to begin the uploading process and to finalize your submission. Uploading large documents may take time, depending on the size of the file(s) and your Internet connection speed.

1.7.1 Questions - All solicitation questions must be submitted electronically to https://hccs.bonfirehub.com through the vendor discussions section under the respective project.

1.7.2 Browsers **-** The Bonfire portal can be accessed using Microsoft Edge, Google Chrome, or Mozilla Firefox. JavaScript must be enabled. Browser cookies must be enabled.

1.7.3 Support - For technical questions, visit Bonfire's help forum at https://vendorsupport. Contact the Bonfire support team at Support@GoBonfire.com or by calling 1-800-354-8010.
To get started with Bonfire, watch this five-minute training video:

Vendor Registration and Submission [VIDEO] – Bonfire Vendor Support: (GOBONFIRE.COM)

1.7.4 Bids shall meet the following minimum requirements to be considered for evaluation:

i. Bidder shall create and upload in the designated Required Information field in Bonfire a document (Bid) that provides enough content, in HCC's sole discretion, that HCC can evaluate the Bid/Proposal in accordance with the requirements stated in this solicitation. The Bidder shall provide an overview of its company, provide the name, and contact information for the person authorized to represent the company in this solicitation process.

ii. The bidder shall describe all of the services that it offers to HCC. Describe any memberships, certifications, awards, etc. that the Bidder's company or principal officers have earned.

iii. The bidder shall complete the appropriate Pricing documents found in Bonfire based on goods and/or services offered. Bidder shall submit a fee schedule for any fees not already listed on the line items.

iv. The bidder shall submit all Requested Information in Bonfire and shall submit the Form CIQ **only** if conflicts exist. By submitting a Bid/Proposal, even without a completed Form CIQ, the Bidder certifies compliance with the requirements therein and that none of the disclosure criteria apply.

v. HCC reserves the right to request additional information as it deems necessary.

vi. If Bidder takes exception to any portion of this solicitation, whether included in full text or incorporated by reference, Bidder must state so in the bid/proposal, with specific citations, justifications, and proposed alternative language. HCC reserves the right to accept or reject any exceptions taken but may choose to negotiate such exceptions.

vii. Bidder may provide HCC with any information related to the specification and requirements listed in this solicitation. It is incumbent upon the Bidder to review the solicitation as a whole and provide any other information that it deems relevant to HCC's consideration of their Bid.

1.7 Bid Opening Instructions

A virtual online public bid opening will be held after the Bid close date and time. A face-to-face public bid opening will not be held.

Bidders are invited and encouraged to participate in the online Bid Opening where each Bid will be opened and read aloud. Access to the virtual online Bid Opening via MS TEAMS instructions are below:

Bid opening held virtually on Wednesday, May 14, 2025, at 3:00 p.m. CST.

MS Teams Information:
Meeting Link (preferred method of joining through computer, so that presentation materials can be viewed):

https://teams.microsoft.com/l/meetup-join/19%3ameeting_ZDMyMjMzMzItZWE2My00MDE0LWE4ZDItZTE2NGQ3YjQ4ZGU0%40thread.v2/0?context=%7b%22Tid%22%3a%22bedc536d-9380-4d10-9954-ddfc8f5b5bdd%22%2c%22Oid%22%3a%22cbeda72a-1bb5-4d0e-927a-3c1b6e7096e4%22%7d

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2. Scope of Work

The Contractor shall be required to furnish all material, labor, tools, supplies, permits, equipment, transportation, superintendence, barricades, temporary protection, bracing, shoring, temporary construction of every nature, compliance with all mandated code, insurance, bonds, taxes, contributions and all services and facilities, unless specifically accepted, to provide the HVAC Roof Top Unit Replacement Project.

2.1 Project Description

The project consists of the HVAC Roof Top Unit replacement with the coordination of the existing building automation system (BAS) controls (EcoStruxure). The project is located at HCC's Spring Branch Campus, Science Hall, 1050 West Sam Houston Parkway, Houston, TX 77043, and will affect **19,417 sq. ft.** of building structural cooling area.

The scope of work includes mechanical, electrical and controls work per specifications. Factory start-up and commissioning of the installation to be performed by the Contractor.

The Contractor shall be required to obtain all permits required in accordance with the plans, specifications and drawings through the permitting authority and certificate of Occupancy/Compliance and all documentation to complete the project and that are pertinent to allow HCC to operate the facility as intended. Any security/IT scope is provided by HCC. The Contractor shall coordinate the scope of work with HCC per specifications.

The project schedule of values consists of:

- Mechanical equipment removal
- New Mechanical equipment Material & Install
- Mechanical Controls (BAS)
- Electrical Scope
- Plumbing Scope
- Submittal Requirements
- Warranty and Maintenance Closeout Requirements
- General Conditions

The scopes of works of the HVAC RTU Replacement, at HCC's Spring Branch Campus, outlined in the construction, plans and specifications described and may be found in the project folder FCA-237-24 issued for Construction, accessible via the E-Builder link below.
https://app.e-builder.net/public/publicLanding.aspx?QS=8dd731a2b3094bba94799c7d9c1f8b11

2.2 Safety Program

List your firm's Worker Compensation Experience Modification Rate (EMR) for the last 5 years as obtained from your insurance agent:

2.2.1 List Number of injuries and illness;
2.2.2 Number of lost time accidents;
2.2.3 Number of recordable cases;
2.2.4 Number of fatalities;
2.2.5 Number of employee direct hire fixed hours worked. (Round to 1,000's)
2.2.6 Are regular Project safety meetings held for Field Supervisor(s)? **Yes** **No**
2.2.7 If yes, frequency: Weekly. Bi-Monthly. Monthly. As Needed
2.2.8 Are Project safety inspections conducted? **Yes** **No**

2.2.9 If yes, who performs inspection?
2.2.10 How often?
2.2.11 Who is required to attend?
2.2.12 Does your firm have a written safety program? **Yes** **No**

3. Minimum Experience and Qualifications

These minimum requirements apply to the Contractor and Contractor's personnel and any Subcontractor and Subcontractor's personnel. The bidder will submit documentation of experience and qualifications with Response.

The Bidder must have relevant experience required for the performance of the services as outlined in this Solicitation. The minimum experience required is three (3) years.

The Bidder's personnel to be assigned to perform the services must be fully trained and, at minimum, have three (3) years' relevant experience.

All Contractor or Subcontractor personnel assigned to perform the services must be at least 18 years of age.

The Bidder must provide a minimum of three (3) verifiable references for current or previous contracts of the same size and for similar scope or same services within the last three (3) years.
Bidder must submit a detailed itemized bid – Pricing Sheet.

4. Additional Information

A bid award, if any, will be through the issuance of an HCC purchase order (PO) and shall be governed by the general terms and conditions of purchase outlined on the HCC PO document unless such terms and conditions are superseded by the content in this IFB or contract (if terms are in conflict, the terms of the IFB will take precedence).

By submitting a response to this request, the bidder accepts the responsibility for downloading, reading and abiding by HCC terms and conditions set forth in the General Terms and Conditions found on the HCC web site at: HCC General Terms and Conditions.

The final authority to approve or disapprove delivered products and/or services lies with HCC.

In the event products/services delivered do not meet specification, quality level, or do not perform as specified in this bid/proposal, the supplier will replace the items, at no additional cost to HCC.

The bidder shall be responsible for all claims against the manufacturer for manufacturing defects.
Any correspondence regarding an HCC PO, specifically an invoice, must include the PO number to ensure correct and timely processing. Invoices must reference HCC's PO number.

HCC **WILL NOT** be responsible for products delivered or services rendered in advance of a supplier's receipt of a purchase order.

The bidder must immediately notify HCC once the bidder knows, or reasonably should know, that products and/or services will not be delivered or rendered as promised.

If HCC, in the exercise of its best judgment, determines the supplier's process for the delivery of products and/or services is unsafe or hazardous to life or property, HCC will suspend the process until the supplier takes corrective action.

No allowance will be made for a supplier's waste, loss, breakage, damage or difficulties.

Trash or refuse generated because of the operations or activities of the supplier delivering products and/or services, shall properly dispose of any trash or refuse, at the supplier's expense.

The bidder shall be responsible for all claims against a carrier for freight and/or damage.

5. Additions and Deletions

HCC, by written notice to the Contractor, at any time during the term of this contract, may add or delete like or similar locations, materials to be provided and/or services to be performed. Any such written notice shall take effect on the date stated in the notice from the College. The Contractor will be requested to provide a monthly fee equal to their normal and customary charges or rates for the materials, equipment, locations and/or services requested.

6. Estimated Quantities Not Guaranteed

The estimated quantities specified herein are not a guarantee of actual quantities, as HCC does not guarantee any particular quantity of equipment, or services requested during the term of this contract. The quantities may vary depending upon the actual needs of the user department. The quantities specified herein are good faith estimates of usage during the term of this contract. Therefore, HCC shall not be liable for any contractual agreements/obligations the Contractor enters into based on all the quantities specified herein. There is no guaranteed amount of business, expressed or implied, to be purchased or contracted for by HCC.

7. First Year Warranty and Maintenance Service

A minimum one-year warranty shall be provided after delivery. The first-year warranty should include all parts and labor, including all necessary on-site labor and all travel expenses for technicians.

The Contractor warrants all items acquired shall conform to all contractors' representations, the requirements of this contract, and all published documentation.

The Contractor shall provide the following Warranty details:

i. Describe the warranty period including a detailed description of what is covered and what may be excluded from coverage.
ii. Provide detailed description of what is covered and what may be excluded from coverage under the optional maintenance.
iii. Identify what type and kind of field support you will provide under this solicitation; if any.

8. Added Value

HCC is interested in maximizing the value of expenditures as it relates to achieving additional value that would further benefit HCC and its operation, as well as its community of citizens and their tax-based funding. As such, bidders are encouraged to consider, develop and propose added value concepts, programs, components and the like that would further enhance the proposed acquisition represented in this solicitation request.

Section 2 – Schedule of Items and Prices Base Bid

Instructions
Please provide a Total Proposed Price reflecting all project costs to successfully complete the project. Work requirements will be specified in individual purchase orders issued by Houston Community College. The Bidder shall furnish necessary resources and services required to complete the project, in accordance with the scope of work, project specifications, and drawings hereby incorporated and made a part of this IFB and the contract documents, for the prices listed below.

Please provide a complete Bid reflecting all project costs to successfully complete the project. Work requirements will be specified in individual purchase orders issued by Houston Community College.

HCC reserves the right to accept or reject, in whole or in part, any or all bids received and to make an award based on individual campuses or combination of campuses. Although HCC may award one contract as a result of this Invitation for Bid, HCC reserves the right to award by campus or in total and/or multiple awards, whichever is in the best interest or most advantageous of the College as a result of this solicitation.

Engineer's Estimated Project Budget: Five Hundred Fifty Thousand to Six Hundred Thousand Dollars, $550,000.00 to $600,000.00

1. **Base Bid**

BASE BID

Base Bid - The Base Bid will be used to determine the lowest responsible bidder.

Undersigned agrees to complete the work of the HVAC RTU Replacement, at HCC's Spring Branch Campus, for the lump sum amounts of:

_____Dollars
(Amount written in words governs)

$_____
(Amount in figures)

Contract Duration
Undersigned agrees to commence work upon Notice to Proceed and be substantially complete the projects as stated herein within, _____, calendar days.

2. **Rate Sheet for Additional Services**
The college may request a bid/proposal for related services, the Contractor is asked to include their standard price sheet to cover all items and services not specifically covered in the IFB. (The additional price sheets will not be considered in the evaluation)

3. **Liquidated Damages**
The undersigned understands that liquidated damages as defined in the Agreement between Owner and Contractor and that the contractor will be bound thereto.

For each consecutive calendar day after the deadline for substantial completion that any Work, including the correction of deficiencies found during the final testing and inspection, is not completed, the amount of **Eight Hundred Dollars ($800.00) per Calendar Day** will be deducted from the money due or becomes due the Contractor, not as a penalty but as liquidated damages representing the parties' estimate at the time of Contract execution of the damages which the Owner will sustain for late completion.

4. Sealed Bid Signature

I have received and thoroughly examined the plans, specifications, and project schedule and have visited and examined the work site. I have also received and considered all solicitation amendments as posted on the solicitation website and have included those provisions in my Bid.

I understand the work to be done as provided in the plans and specifications. I further understand that the work is subject to the review and approval of Houston Community College System and submit the following Bid.

In submitting this Bid, the undersigned agrees and accepts all provisions and exhibits within this IFB.

Name: _____

Title: _____

Date: _____

Signature: _____

5. Cooperative Contract (If Applicable)

Please list the following information for the cooperative contract that your proposal is being submitted under:

Cooperative Contract Name:	
Cooperative Contract No.	
Cooperative Contract Term	
Cooperative Contract Website link:	

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6. Additional Requirements

- Proposer accepts payment using a purchasing card (MasterCard) at no additional fee: Yes __ No__.
- Proposer accept a site visit to inspect the items being proposed (if needed): Yes __ No___.

7. Discount for Prompt Payment

Net 10 Calendar days _____% Net 20 Calendar days _____%

8. Delivery of Invoices

All invoices shall reference the governing Purchase Order (PO) number and be sent to the following location via email to accounts.payable@hccs.edu

9. Certification

By submitting this Invitation for Bid response, the above named individual certifies that the individual/company is not ineligible to receive a purchase order/contract per the terms and requirements set forth per HCC General Terms and Conditions or for any other reason. Further, the above-named individual certifies that he/she has read, understands and agrees to be bound by the requirements and terms and conditions set forth in this Invitation for Bid.

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Section 3 – Bid Evaluations

1 Eligibility for Award

In order for a bid to be eligible to be awarded the contract, the bid must be responsive to the solicitation and HCC must be able to determine that the bidder is responsible and has the resources and capacity to perform the resulting contract satisfactorily. Responsive bids are those that comply with all material aspects of the solicitation, conform to the solicitation documents, and meet the requirements set forth in this solicitation. Bids, which do not comply with all the terms and conditions of this solicitation, will be rejected as non-responsive.

1.1 Responsible bids, at a minimum, must meet the following requirements:

i. Have adequate financial resources, or the ability to obtain such resources as required during the performance of any resulting contract;

ii. Be able to comply with the required performance schedule, taking into consideration all existing business commitments;

iii. Have a satisfactory record of past performance;

iv. Managed three or more projects of similar size and scope.

v. Have necessary resources, expertise, and personnel capability to perform any resulting contract fully and completely;

vi. Be qualified as an established firm regularly engaged in the type of business necessary to fulfill the contract requirements;

vii. Certify that the firm is not delinquent in any tax owed the State of Texas under Chapter 171, Tax Code; and is not delinquent in taxes owed to the Houston Community College System; signing and submitting the bid is so certifying to such non-delinquency; and

viii. Be otherwise qualified and eligible to receive an award under applicable laws and regulations.

ix. Bid(s) may be requested to submit additional written evidence verifying that the firm meets the minimum requirements described above and as necessary, to perform the requirements of the solicitation and be determined a responsible bidder. Failure to provide any requested additional information may result in the bidder being declared non-responsive and the bid being rejected.

x. A person is not eligible to be considered for award of this solicitation or any resulting contract or to be a subcontractor of the bidder or prime contractor if the person assisted in the development of this solicitation or any part of this solicitation or if the person participated in a project related to this solicitation when such participation would give the person special knowledge that would give that person or a prime contractor an unfair advantage over other bidders.

xi. A person or bidder shall not be eligible to be considered for this solicitation if the person or bidder engaged in or attempted to engage in prohibited communications as described in Section 5.17 - Prohibited Communications and Political Contributions.

xii. Only individual firms or lawfully formed business organizations may apply (This does not preclude a respondent from using subcontractors or contractors.) HCC will contract only with the individual firm or formal organization that submits a response to this IFB.

Section 4 – Instructions to Bidders

1. General Instructions

a. Bidders should carefully read the information contained herein and submit a complete response to all requirements and questions as directed.

b. Bids and any other information submitted by Bidders in response to this Invitation For Bid (IFB) shall become the property of HCC.

c. HCC will not provide compensation to Bidders for any expenses incurred by the Bidder for bid preparation or for any demonstrations that may be made, unless otherwise expressly stated. Bidders submit bids at their own risk and expense.

d. Bids, which are qualified with conditional clauses, or alterations, or items, not called for in the IFB documents, or irregularities of any kind are subject to disqualification by HCC, at its option.

e. Each bid should be prepared simply and economically, providing a straightforward, concise description of your firm's ability to meet the requirements of this IFB. Emphasis should be on completeness, clarity of content, responsiveness to the requirements, and an understanding of HCCs needs.

f. HCC makes no guarantee that an award will be made as a result of this IFB and reserves the right to accept or reject any or all bids, waive any formalities or minor technical inconsistencies, or delete any item/requirements from this IFB or resulting Agreement when deemed to be in HCCs best interest. Representations made within the bid will be binding on responding firms. HCC will not be bound to act by any previous communication or bid submitted by the firms other than this IFB.

g. Firms wishing to submit a "No-Response" are requested to return the first page of the Contact Award Form (ref. Attachment No. 1). The returned form should indicate your company's name and include the words "No-Response" in the right-hand column.

h. Failure to comply with the requirements contained in this IFB may result in the rejection of your bid.

2. Preparation and Submittal Instructions

All Attachments noted in Section are to be completed and submitted with Bid, Attachments 1, 5 and 7 must be signed and notarized.

3. Document Format and Content

a. The bid must be signed by Bidder's company official(s) authorized to commit such bids. Failure to sign and return these forms will subject your bid to disqualification.

b. Responses to this IFB must include a response to the bid requirements set forth in the Scope of Work, above.

c. Table of Contents: Include with the bid a Table of Contents that includes page number references. The Table of Contents should be in sufficient detail to facilitate easy reference of the sections of the bid as well as separate attachments (which should be included in the main Table of Contents). Supplemental information and attachments included by your firm (i.e., not required) should be clearly identified in the Table of Contents and provided as a separate section.

d. Pagination: All pages of the bid should be numbered sequentially in Arabic numerals (1, 2, 3, etc.) Attachments should be numbered or referenced separately.

e. HCC Forms and documents through the Bonfire portal. An original (manual) signature must appear on the original electronic copy. The electronic copies should be in non-editable .PDF format and should include the entire submission.

f. Bids must be submitted and received via the Bonfire portal on or before the time and date specified in the Solicitation Schedule.

g. Late bids properly identified will not be accepted. Late bids will not be considered under any circumstances.

h. Telephone, Facsimile ("FAX") or electronic (email) bids are not acceptable when in response to this Invitation For Bid.

4. Bidder Response

General: Your Technical Bid should clearly define (i) your Firm's total capacity and capabilities, (ii) your qualifications to perform the work, (iii) your ability to perform the services outlined in the Scope of Work, (iv) your understanding of HCC, and (v) what differentiates you from your competitors. At a minimum, your Technical Bid shall include the following:

a. Sealed Price Form

The Bidder shall furnish all resources and services necessary and required to provide the goods and services of the type and kind required in this IFB, in accordance with the Scope of Work/Specifications, and the governing terms and conditions for the proposed price(s) listed in Section 2 – Schedule of Items and prices base Bid.

b. Cover letter

The cover letter shall not exceed 1 page in length, summarizing key points in the bid and shall briefly furnish background information about your firm, including date of founding, legal form (sole proprietorship, partnership, corporation/state of incorporation), number and location of offices, location of company headquarters/main office, total number of employees' company-wide and total number of employees in the State of Texas, and principal lines of business. Certify that the firm is legally permitted or licensed to conduct business in the State of Texas for the services offered.

Only individual firms or lawfully formed business organizations may apply (This does not preclude a respondent from using consultants.) HCC will contract only with the individual firm or formal organization that submits a response to this IFB.

c. Confirm acceptance of all requirements noted in the IFB, including all requirements noted in the Scope of Work/Specifications.

d. Provide references of firm's past performance, including contact information (name, number, email), where Bidder has successfully performed the work of the type and kind required in this IFB.

e. Provide the name of the project manager that will be assigned to this project through completion.

f. Provide your Experience Modification Rate (EMR) for the past three years.

g. Small Business Commitment
This section shall include a clear statement of the firm's commitment and plan to meet the small business goal specified in this solicitation, if any.

i. Describe your previous experience, involvement and approach in working with certified Small Business firms; including level of effort, division of duties and providing opinions. Provide a statement detailing small business participation commitment.

ii. For this Project HCC has a small business participation goal of **Thirty-Five Percent (35%)**.

iii. At a minimum, your response must include: (a) Firm's commitment to meeting the small business participation goal for the projects (b) a description of previous projects where your firm has successfully subcontracted work to small businesses including the percentage (%) of work subcontracted to these firms under each project; (c) a narrative outlining your overall approach to subcontracting and how you will solicit small businesses for participation as part of this Project; and (d) indicate what challenges you anticipate in attaining HCC's goal.

iv. Describe your company's process for the selection of subcontractors in accordance with the statutory procedures required for the solicitation of subcontractors, including your process for evaluating subcontractors' performance while also incorporating a Small Business Development Program.

v. Provide a reference list of all customers noted in Section 4(d) above that includes a Small Business or similar program where you have performed work similar to the type of work described in this IFB. Provide the contact person and the representative who served as the Small Business Development liaison (or equivalent), telephone number and email address.

h. Firm's Financial Status

i. Provide a statement from the president, owner or financial officer on company letterhead certifying that the company is in good financial standing and current in payment of all taxes and fees including but not limited to state franchise fees.

ii. Is your company currently in default on any loan agreement or financing agreement with any bank, financial institution, or other entity? If yes, specify date(s), details, circumstances, and prospects for resolution.

i. Required Attachments
This section shall include all Attachments noted in Section 6, all forms shall be completed, signed and submitted with Bid. Attachments 1, 5 and 7 must be signed and notarized.

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Section 5 – General Information

BIDDERS ARE CAUTIONED TO READ THE INFORMATION CONTAINED IN THIS IFB CAREFULLY AND TO SUBMIT A COMPLETE RESPONSE TO ALL REQUIREMENTS AND QUESTIONS AS DIRECTED.

1. General Information

Houston Community College's service area is Houston Independent School District, Katy, Spring Branch, Alief Independent School Districts, Stafford Municipal District, and the Fort Bend portion of Missouri City. The System is accredited by the Commission on Colleges of the Southern Association of Colleges and Schools to award the associate degree.

Houston Community College serves its students each semester, by offering associate degrees, certificates, academic preparation, workforce training, and lifelong learning opportunities that prepares students in our diverse community to compete in an increasingly technological and international society. Houston Community College plays an integral role in transforming the lives of its students and making our community work.

More information regarding HCC can be found in the annual HCC Fact book.

HCC Mission - Houston Community College is an open-admission, public institution of higher education offering a high-quality, affordable education for academic advancement, workforce training, career development, and lifelong learning to prepare individuals in our diverse communities for life and work in a global and technological society.
HCC Vision - Houston Community College will be a leader in providing high quality, innovative education leading to student success and completion of workforce and academic programs. We will be responsive to community needs and drive economic development in the communities we serve.

Additional information about Houston Community College may be found by visiting HCC Website.

Visit the HCC Procurement Operations Department Website to get more information on this and other business opportunities. While at our website we invite you to Register as a Vendor, if already registered, please confirm your contact information is current.

2. Overview

The Houston Community College, ("HCC") or ("College") is seeking bids from qualified firms in accordance with the Scope of Work noted above. Qualified respondents are invited to submit a written response outlining your qualifications and willingness to provide goods, equipment and services as described in the Scope of Work, and in accordance with the terms, conditions and requirements set forth in the Invitation For Bid (IFB). The successful bidder will provide the scope of work in accordance with all applicable laws, regulations and professional standards.

HCC reserves the right to make single, multiple or no award for the goods or services described herein and as deemed in its own best interests.

HCC reserves the right to reject any or all bids or to accept any bids it considers most favorable to HCC, or to waive irregularities in the Invitation For Bid (IFB) and submittal process. HCC further reserves the right to reject all bids or submittals and terminate the solicitation process or seek new bids when such procedure is reasonably in the best interest of HCC.

This IFB solicitation does not in any way oblige HCC to award a contract or pay any expense or cost incurred in the review and submission of bids responding to this IFB.

All applicable attachments contained in the IFB shall be completed. Failure to do so may result in the firm's bid being declared non-responsive to the solicitation requirements.

Information provided in response to the IFB is subject to the Texas Public Information Act and may be subject to public disclosure.

By submitting its bid in response to this IFB, respondent accepts the evaluation process and acknowledges and accepts that determination of "most-qualified" and "best valued" firm(s) will require subjective judgments by HCC.

Any exceptions taken to the terms of the IFB must be specific, and the respondent must indicate clearly what alternative is being offered to allow HCC a meaningful opportunity to evaluate implications of the exception (if any).

Where exceptions are taken, HCC shall determine the acceptability of the proposed exceptions. HCC may accept or reject the exceptions.

All exceptions shall be referenced by utilizing the corresponding Section, paragraph and page number in this IFB. However, HCC is under no obligation to accept any exceptions. Respondent shall be deemed to have accepted all terms and conditions to which no exceptions have been taken.

The IFB provides information necessary to prepare and submit bids or responses for consideration by HCC based on the listed criteria. HCC may request additional clarification and oral interviews solely on the written responses to this Invitation For Bid.

3. Pre-Bid Meeting

The purpose of the meeting is to briefly describe the procurement process and specifications while allowing interested firms to ask general questions. Nothing said in the pre-bid meeting shall be binding to HCC; any changes to the requirements of this IFB shall be made by way of written solicitation amendment.

If applicable, the Pre-Bid Meeting date and time is noted in the Solicitation Schedule.

4. Award / Contract Approval

This Procurement, any award under this procurement, and the resulting contract, if any, is subject to approval by HCC Board of Trustees. Subsequent to Board approval, the only person

authorized to commit HCC contractually is the Chancellor or designee. This solicitation is an invitation for bid and neither this solicitation nor the response or bid from any prospective bidder shall create a contractual relationship that would bind HCC until such time as both HCC and the selected bidder sign a legally binding contract, which includes, without limitation, the terms required by HCC as set forth in the Scope of Work/Services and this IFB.

5. HCC Contact

Any questions or concerns regarding this Invitation For Bid shall be directed to the named HCC individual listed on the cover page. HCC specifically requests that bidders restrict all contact and questions regarding this IFB to that named individual. The HCC individual must receive all questions or concerns no later than the date and time listed in the Solicitation Schedule.

6. Inquiries and Interpretations

Responses to inquiries, which directly affect an interpretation or change to this IFB, will be issued in writing by addendum (amendment) and all addenda will be posted on the HCC Website www.hccs.edu. All such addenda issued by HCC prior to the time that bids are received shall be considered part of the IFB, and the Bidder shall be required to consider and acknowledge receipt of such in their bid.

Only those HCC replies to inquiries, which are made by formal written addenda, shall be binding. Oral and other interpretations or clarification will be without legal effect. The bidder must acknowledge receipt of all addenda in Attachment No. 1 of this IFB (Contract Award Form).

7. Commitment

Bidder understands and agrees that this IFB and any resulting Agreement is issued predicated on anticipated requirements for the materials or services described herein and that HCC has made no representation, guarantee or commitment with respect to any specific quantity of or dollar value to be furnished under any resulting Agreement. Further Bidder recognizes and understands that any cost borne by the Bidder, which arises from Bidder's performance under any resulting agreement, shall be at the sole risk and responsibility of Bidder.

8. Acquisition from Other Sources

HCC reserves the right and may, from time to time as required by HCCs operational needs, acquire goods and services of equal type and kind from other sources during the term of the agreement without invalidating in whole or in part, the agreement or any rights or remedies HCC may have hereunder.

9. Vendor Registration

The Houston Community College Procurement Operations Department has developed an online vendor application. This is designed to allow firms or individuals that are interested in doing business with HCC to register online and become part of our vendor database. Once registered, you will receive a password and personal login information that will allow you to modify your vendor information anytime a change occurs with your company. You will have the flexibility to add or delete commodity lines, update phone numbers, contact information, etc. This database will allow HCC to notify, via email, all companies that match the desired commodity criteria for procurement opportunities within Houston Community College. What a great way to never miss an HCC bid or proposal opportunity again.

Please take a moment to go to the Houston Community College Procurement Operations Department website and register as a vendor. The website address to access the vendor registration form is https://hccs.sbecompliance.com/FrontEnd/VendorsIntroduction.asp

If you do not have internet access, you are welcome to use a computer at any HCC library to access the website and register.

10. Obligation and Waivers

THIS IFB IS A SOLICITATION FOR BIDS AND IS NOT A CONTRACT OR AN OFFER TO CONTRACT.

A PROPERLY COMPLETED VENDOR APPLICATION IS REQUIRED AND IS A CONDITON OF CONTRACT AWARD.

THIS INVITATION FOR A BID DOES NOT OBLIGATE HCC TO AWARD A CONTRACT OR PAY ANY COSTS INCURRED BY THE BIDDER IN THE PREPARATION AND SUBMITTAL OF A BID.

HCC, IN ITS SOLE DISCRETION, RESERVES THE RIGHT TO ACCEPT ANY BID AND/OR REJECT ANY AND ALL BIDS OR A PART OF A BID, WITHOUT REASON OR CAUSE, SUBMITTED IN RESPONSE TO THIS SOLICITATION.

HCC RESERVES THE RIGHT TO REJECT ANY NON-RESPONSIVE OR CONDITIONAL BID. HCC RESERVES THE RIGHT TO WAIVE ANY INFORMALITIES, IRREGULARITIES AND/OR TECHNICALITIES IN THIS SOLICITATION, THE BID DOCUMENTS AND /OR BIDS RECEIVED OR SUBMITTED.

BY SUBMITTING A BID, BIDDER AGREES TO WAIVE ANY CLAIM IT HAS, OR MAY HAVE, AGAINST HOUSTON COMMUNITY COLLEGE SYSTEM AND ITS TRUSTEES OR AGENTS ARISING OUT OF OR IN CONNECTION WITH (1) THE ADMINISTRATION, EVALUATION OR RECOMMENDATIONS OF ANY BID; (2) ANY REQUIREMENTS UNDER THE SOLICITATION, BID PACKAGE, OR RELATED DOCUMENTS; (3) THE REJECTION OF ANY BID OR ANY PART OF ANY BID; AND/OR (4) THE AWARD OF A CONTRACT, IF ANY.

HCC RESERVES THE RIGHT TO WITHDRAW THIS SOLICITATION AT ANY TIME FOR ANY REASON; REMOVE ANY SCOPE COMPONENT FOR ANY REASON AND TO ISSUE SUCH CLARIFICATIONS, MODIFICATIONS AND/OR AMENDMENTS AS DEEMED APPROPRIATE.

HCC IS AN EQUAL OPPORTUNITY/EDUCATIONAL INSTITUTION, WHICH DOES NOT DISCRIMINATE ON THE BASIS OF RACE, COLOR, RELIGION, NATIONAL ORIGIN, GENDER, AGE, DISABILITY, SEXUAL ORIENTATION, OR VETERAN STATUS.

11. Contract Award

Award of a contract, if awarded, will be made to the Bidder who (a) submits a responsive bid; (b) is a responsible bidder; and (c) offers the lowest responsive responsible bid price in accordance with the Texas Government Code Section 2269, Subchapter C Competitive Bidding Method.

A responsive bid and a responsible bidder are those that meet the requirements of and are as described in this solicitation. HCC may award a contract, based on an initial bid received, without discussion of such bids. Accordingly, each initial bid should be submitted on the most favorable terms from a price and technical standpoint, which the bidder can submit to HCC. Except as otherwise may be set forth in this solicitation, HCC reserves the right to waive any informalities, non-material errors, technicalities, or irregularities in the bid documents submitted and consider the bid for award.

12. Postponement of Bids Due Date/Time:
Notwithstanding the date/time for receipt of bids established in this solicitation, the date and time established herein for receiving bids may be postponed solely at HCCs discretion.

13. Oral Presentations:
During the process of selecting a company to provide the required services, oral presentations may or may not be held. Each bidder should be prepared to make a presentation to HCC. The presentations must show that the bidder is responsible and clearly understands the requirements of the solicitation and has a strategic plan and approach to complete the work.

14. Small Business Development Program (SBDP):
The Houston Community College System's Small Business Development Program ("SBDP" or the "Program") was created to provide business opportunities for local small businesses to participate in contracting and procurement at Houston Community College (HCC).

The SBDP is a goal-oriented program, requiring Contractors who receive Contracts from HCC to use Good Faith Efforts to utilize certified small businesses. The Program applies to all Contracts over $50,000, except Contracts for sole-source items, federally funded Contracts, Contracts with other governmental entities, and those Contracts that are otherwise prohibited by applicable law or expressly exempted by HCC. The SBDP is a race and gender-neutral program, however HCC actively encourages the participation of minority and women-owned small businesses in the SBDP.

To participate, small businesses must be certified by an agency or organization whose certification is recognized by HCC. Certification is based on the firm's gross revenues or number of employees averaged over the past three years, inclusive of any affiliates as defined by 13 C.F.R. § 121.103, does not exceed the size standards as defined pursuant to Section 3 of the Small Business Act and 13 C.F.R. § 121.201.

HCC recognizes certification by the following governmental and private agencies: Metropolitan Transit Authority of Harris County (METRO) SBE Certification, City of Houston SBE, MWPDBE and DBE Certifications, Texas Department of Transportation SBE Certification, City of Austin SBE Certification, South Central Texas Regional Certification Agency SBE Certification, Small Business Administration 8(a). HCC has the right to revoke acceptance of a business as a certified or qualifying small business and to conduct certification reviews. For more information regarding SBE Certifications go to http://www.hccs.edu/about-hcc/procurement/small-business-procurement/.

Good Faith Efforts: HCC will make a good faith effort to utilize small businesses in all contracts. The annual program goals may be met by contracting directly with small businesses or indirectly through subcontracting opportunities. Therefore, any business that contracts with HCC will be required to make a good faith effort to award subcontracts to small businesses. The subcontracting goal applies to all vendors regardless of their status. By implementing the following procedures, a contractor shall be presumed to have made a good faith effort:

a. To the extent consistent with industry practices, divide the contract work into reasonable lots.

b. Give notice to SBDP eligible firms of subcontract opportunities or post notices of such opportunities in newspapers and other circulars.

c. Document reasons for rejecting a firm that bids on subcontracting opportunities.

15. Prime Contractor/Contracts for Services:
The prime contractor must perform a minimum of 30% of any contract for services with its labor force and or demonstrate management of the contract for services to the satisfaction of HCC.

16. Internship Program:
HCC is expanding its student internship program. All vendors are encouraged to make a commitment to utilize certain HCC student(s) in an internship capacity with the company under any resulting contract for services required under this solicitation. The selected contractor will be expected to pay the student(s) at least the minimum wage required by law. HCC will provide the selected contractor with the name of student(s) eligible to participate in the internship program.

For additional information regarding the internship program, please contact the Procurement Operations Department at 713-718-5001.

17. Prohibited Communications and Political Contributions:
Except as provided in exceptions below, political contributions and the following communications regarding this solicitation or any other invitation for bid, requests for proposal, requests for qualifications, or other solicitation are prohibited:

[1] Between a potential vendor, subcontractor to vendor, service provider, respondent, Offeror, lobbyist or consultant and any Trustee;
[2] Between any Trustee and any member of a selection or evaluation committee; and
[3] Between any Trustee and administrator or employee.

The communications prohibition shall be imposed from the day the solicitation is first advertised through thirty (30) days after the contract is executed by the Chancellor or his/her designee, or when a determination is made that the contract will not be awarded. During this period, no HCC Trustee and no vendor shall communicate in any way concerning any pending Solicitation involving the Vendor, subject to the penalties stated herein.

In the event the Board refers the recommendation back to the staff for reconsideration, the communication prohibition shall be re-imposed.

The communications prohibition shall not apply to the following:

[1] Duly noted pre-bid or pre-proposal conferences.

[2] Communications with the HCC General Counsel.

[3] Emergency contracts.

[4] Presentations made to the Board during any duly noticed public meeting.

[5] Unless otherwise prohibited in the solicitation documents, any written communications between any parties, provided that the originator shall immediately file a copy of any written communication with the Board Services Office. The Board Services Office shall make copies available to any person upon request.

Nothing contained herein shall prohibit any person or entity from publicly addressing the Board during any duly noticed public meeting, in accordance with applicable Board policies regarding action on the contract.

Any potential vendor, subcontractor vendor, service provider, proposer, offeror, lobbyist or consultant who engages or attempts to engage in prohibited communications shall not be eligible for the award of any resulting contract under this solicitation. Any other direct or indirect actions taken to unduly influence competitive purposes, to circumvent equal consideration for competitive proposers, or to disregard ethical and legal trade practices will disqualify proposers, vendors, service providers, lobbyist, consultants, and contractors from both this current and any future consideration for participation in HCC orders and contracts.

18. Drug Policy:
HCC is a drug-free workforce and workplace. The manufacture, sale, distribution, dispensation, possession or use of illegal drugs (except legally prescribed medications under physician's prescription and in the original container) or alcohol by vendors or contractors while on HCC's premises is strictly prohibited.

19. Taxes:
HCC is tax exempt as a governmental subdivision of the State of Texas under Section 501C (3) of the Internal Revenue Code. Limited Sales Tax Number: 1-74-1709152-1. No bid shall include any costs for taxes to be assessed against HCC. The Contractor shall be responsible for paying all applicable taxes and fees, including but not limited to, excise tax, state and local income tax, payroll and withholding taxes for Contractor Employees. The contract shall hold HCC harmless for all claims arising from payment of such taxes and fees.

20. Texas Public Information Act:
HCC considers all information, documentation and other materials requested to be submitted in response to this solicitation to be of a non-confidential and/or non-proprietary nature, and therefore, shall be subject to public disclosure under the Texas Public Information Act (Texas Government Code, Chapter 552.001, et seq.) ("The Act") after a contract if any, is awarded. If the Bidder considers any information submitted in response to this Invitation For Bid to be confidential under law or constitute trade secrets or other protected information, the bidder must identify such materials in the bid response. Notwithstanding the foregoing, the identification of such materials would not be construed or require HCC to act in contravention of its obligation to comply with the Act and the Bidder releases HCC from any liability or responsibility for maintaining the confidentiality of such documents.

21. Appropriated Funds:
The purchase of a service or product which arises from this solicitation is contingent upon the availability of appropriated funds. HCC shall have the right to terminate the resulting contract at the end of the current or each succeeding fiscal year if funds are not appropriated by the HCC Board of Trustees for the next fiscal year that would permit continuation of the resulting contract. If funds are withdrawn or do not become available, HCC reserves the right to terminate the resulting contract by giving the selected contractor a thirty (30) day written notice of its intention terminate without penalty or any further obligations on the part of HCC or the contractor. Upon termination of the contract HCC shall not be responsible for any payment of any service or product received that occurs after the end of the current contract period or the effective date of termination, whichever is the earlier to occur. HCCs fiscal year begins on September 1 and ends on August 31st.

22. Conflict of Interest:
If a firm, Bidder, contractor, or other person responding to this solicitation knows of any material personal interest, direct or indirect, that any member, official, or employee of HCC would have in any contract resulting from this solicitation, the firm must disclose this information to HCC. Persons submitting a bid or response to this solicitation must comply with all applicable laws, ordinances, and regulations of the State of Texas Government Code, including, without limitation, Chapter 171 and 176 of the Local Government Code. The person / Bidder submitting a response to this solicitation must complete (as applicable), sign and submit **Attachment No. 6, Conflict of Interest Questionnaire Form, and Attachment No. 7, Financial Interest and Potential Conflict of Interests** with the bid package. HCC expects the selected contractor to comply with Chapter 176 of the Local Government Code and that failure to comply will be grounds for termination of the contract.

Note: **Attachment No. 6 and Attachment No. 7** shall be completed, signed and returned to HCC. Enter N/A in those areas on the Attachments that are not applicable to your company. Failure to complete, sign and notarize (if applicable) these Attachments may render your bid non-responsive.

23. Ethics Conduct:
Any direct or indirect actions taken to unduly influence competitive purposes, to circumvent equal consideration for competitive bidders, or to disregard ethical and legal trade practices will disqualify vendors and contractors from current and future consideration for participation in HCC orders and contracts.

24. No Third-Party Rights:
This Contract is made for the sole benefit of HCC and the Contractor and their respective successors and permitted assigns. Nothing in this Contract shall create or be deemed to create a relationship between the Parties to this Contract and any third person, including a relationship in a third-party beneficiary or fiduciary.

25. Withdrawal or Modification:
No bid may be changed, amended, modified by telegram or otherwise, after the same has been submitted or filed in response to this solicitation, except for obvious errors in extension. However, a bid may be withdrawn and resubmitted any time prior to the time set for receipt of bids. No bid may be withdrawn after the submittal deadline without approval by HCC, which shall be based on Respondent's submittal, in writing, of a reason acceptable to HCC.

26. Validity Period:
Bids are to be valid for HCCs acceptance for a minimum of 180 days from the submittal deadline date to allow time for evaluation, selection, and any unforeseen delays. Bids, if accepted, shall remain valid for the life of the Agreement.

27. Terms and Conditions:
The form of Contract and HCC Uniform General Conditions shall govern any Purchase Order issued as a result of this solicitation.

Bidders may offer for HCC's consideration alternate provisions to the form of Contract and Uniform General Conditions. Alternates proposed must refer to the specific article(s) or section(s) concerned. General exceptions such as "company standard sales terms apply" or "will negotiate" are not acceptable. Bidder's silence as to the terms and conditions shall be construed as an indication of complete acceptance of these conditions as written.

28. Submission Waiver:
By submitting a response to this Solicitation, the Offeror or respondent agrees to waive any claim it has or may have against Houston Community College System and its trustees, employees or agents arising out of or in connection with (1) the Administration, evaluation or recommendation of any offer or response; (2) any requirements under the solicitation, the solicitation or response package or related documents; (3) the rejection of any offer or any response or any part of any offer or response; and/or (4) the award of a contract, if any.

29. Indemnification:
Contractor shall indemnify, pay for the defense of, and hold harmless the College and its officers, agents and employees of and from any and all liabilities, claims, debts, damages, demands, suits, actions and causes of actions of whatsoever kind, nature or sort which may be incurred by reason of Contractor's negligence, recklessness, or willful acts and/or omission in rendering any services hereunder. Contractor shall assume full responsibility for payments of federal, state and local taxes or contributions imposed or required under the social security, Workers' Compensation or income tax law, or any disability or unemployment law, or retirement contribution of any sort whatever, concerning Contractor or any employee and shall further indemnify, pay for the defense of, and hold harmless the College of and from any such payment or liability arising out of or in any manner connected with Contractor's performance under this Agreement.

30. Delegation:
Unless delegated, the HCC Board of Trustees must approve all contracts valued at over $100,000. The Board has granted the Chancellor authority to initiate and execute contracts valued up to $100,000. The procurement of goods and services, including professional services and construction services shall be completed as per any applicable HCC policy and procedure and shall be in accordance with Section 44.031 of the Texas Education Code for the purchase of goods and services, Section 2254 of the Texas Government Code for the purchase of Professional and Consulting Services, and Section 2269 of the Texas Government Code for the purchase of construction services. The Board delegates its authority to the administration and the designated evaluation committee to evaluate score and rank the proposals. This includes the evaluation of all bids, proposals, or statements of qualification under procurement, regardless of contract amount, including the final ranking and selection which shall be made on the evaluation and scoring as per the published selection criteria and the final evaluation ranking. The Board of Trustees shall approve the final award of contracts to the firm based on the published selection criteria and as evidenced in the final evaluation, scoring and ranking.

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Section 6 – Required Attachments

Bidders shall complete all noted Attachments and submit with Bid, Attachments 1, 5 and 7 must be signed and notarized.

Attachment Number	Attachment Title
Attachment No. 1	Contract Award Form
Attachment No. 2	Determination of Good Faith Effort Form
Attachment No. 3	Small Business Unavailability Certificate
Attachment No. 4	Contractor & Subcontractor Participation Form
Attachment No. 5	Bidder's Certifications
Attachment No. 6	Conflict of Interest Questionnaire
Attachment No. 7	Financial Interests and Potential Conflicts of Interests
Attachment No. 8	Form 1295
Attachment No. 9	Insurance Requirements

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